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U.S. Department of State Diplomacy in Action

Mexico

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Mexico is a federal republic of 31 states and the Federal District, with an elected president and a bicameral legislature. President Ernesto Zedillo of the Institutional Revolutionary Party (PRI) was elected in 1994 to a single 6-year term. The PRI, the oldest and largest political party, enjoys significant advantages in patronage, incumbency, and fund-raising, and has won every presidential election since the party's founding in 1929, some of which involved credible allegations of fraudulent practices. However, in largely free and fair elections in 1997, the PRI lost its absolute majority in the lower house for the first time, and the two main opposition parties--the Democratic Revolutionary Party (PRD) and the National Action Party (PAN)--have become firmly established and continue to be competitive in elections. Politically motivated violence continued to plague the southern states of Chiapas, Guerrero, and Oaxaca. The peace process in Chiapas between the Government and the Zapatista National Liberation Army (EZLN) remained stalled, although in September the Government proposed a new peace initiative to restart talks. The judiciary is generally independent; however, it occasionally has been influenced by the executive branch.

The military shares responsibility for internal security with the police forces, which include federal and state judicial police, the new federal preventive police, the municipal police, and various police auxiliary forces. Elected civilian officials have control over the military and police; however, corruption is widespread within police ranks and also is a problem for the military. The military maintains a strong presence in the states of Chiapas and Guerrero. Military personnel and police officers continued to commit serious human rights abuses.

The Government continued to deregulate and open the market-based, mixed economy. The real rate of growth in gross domestic product (GDP) in 1998 was 4.8 percent and the inflation rate was 18.6 percent. One-fourth of the population reside in rural areas where subsistence agriculture is common. Per capita GDP in 1999 was about \$4,600. The economy is still recovering from the 1994 economic crisis, and real wages are less than before the crisis. Leading exports include petroleum, automobiles, and manufactured and assembled products, including electronics and consumer goods. Income distribution remained skewed; the top 20 percent of the population received about 60 percent of total income, while the bottom 20 percent earned less than 5 percent.

The Government generally respected many of the human rights of its citizens; however, serious problems remain in several areas, and in some states where a poor climate of respect for human rights presents special concern. Continued serious abuses include extrajudicial killings; disappearances; torture and other abuse; police corruption and alleged involvement in narcotics-related abuses; poor prison conditions; arbitrary arrest and detention; lengthy pretrial detention; lack of due

process; judicial inefficiency and corruption; illegal searches; attacks and threats against journalists; some self-censorship; assaults, harassment, and threats against human rights monitors; violence and discrimination against women; child prostitution and abuse; discrimination against indigenous people; violence and discrimination against religious minorities; violence against homosexuals; limits on worker rights; extensive child labor in agriculture and in the informal economy; and trafficking in persons.

The Government's efforts to improve the human rights situation have met with limited success. Although the Government has sanctioned some public officials, police officers, and members of the military, a culture of impunity continues to pervade the security forces. The Government continued to support the National Human Rights Commission (CNDH), and Congress amended the Constitution to grant it greater autonomy from the executive branch. However, the CNDH primarily investigates complaints against federal authorities and has no enforcement powers.

Armed civilian groups operating in the state of Chiapas were responsible for human rights abuses. The incidence of narcotics-related violence and human rights abuses also increased, allegedly with the assistance of members of the security forces. Guerrilla attacks against government property and personnel continued.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Members of the security forces, both the military and police, committed political and other extrajudicial killings.

On March 4 in the state of Guerrero, men dressed in Federal Judicial Police uniforms and armed with automatic weapons killed Aurelio Garcia, a former state attorney general and advisor to the PRD's unsuccessful gubernatorial candidate in the February 7 election. On April 16, the authorities charged Bernardino Alvear Villa and Juan Valdovinos Rodriguez in connection with this murder. The Federal Attorney General's (PGR) investigation continued at year's end.

On May 8, the military admitted that soldiers killed two farmers during the month of April (see Section 1.g.).

On May 15, Federal Fiscal Police killed 1 immigrant when they opened fire on a van containing 23 persons. The PGR opened an investigation into the incident and detained three Federal Fiscal Police officers. Press reports indicate that at least one of the officers detained also was involved in a similar incident on March 17 when the Federal Fiscal Police opened fire on a van. The police wounded 4 of the 45 passengers but did not kill anyone in that incident. On August 12, a judge ordered the arrest of current and former Tamaulipas PGR officials Carmen Oralio Castro Aparicio, Aurelio Soto Huerta, Jose Isabel Lopez Rivas, Gabriel Angel Gutierrez Portillo, and Ramiro Garcia Eugenio. They are charged with the murder of fellow PGR official Jaime Rajid Gutierrez Arreola.

On October 3, Cosem Demian Sanchez Sastre, a member of the Zapatista National Liberation Front (FZLN, the political branch of the EZLN), was found dead in his cell in a Tijuana detention facility. Police arrested him along with two others on charges of possession of marijuana and public intoxication the previous evening. The authorities announced that the official cause of death was suicide by hanging. However, Sanchez's family and fellow FZLN members claim that at least two witnesses saw prison guards beat him to death. The Binational Center for Human Rights office in Tijuana also protested the official cause of death. Sanchez was the fourth person to die in this Tijuana detention center during the year.

There have been numerous reports of executions carried out by rival drug gangs, whose members have been proven to include both active and former federal and state security personnel.

Throughout the country, but particularly in the northern border states, violence related to narcotics trafficking increased. The police and military were accused of being responsible for disappearances, arbitrary detentions, torture, use of excessive force, and other serious human rights violations as they carried out the Government's efforts to combat drug cartels.

Narcotics-trafficking organizations included corrupted public officials. The former governor of Quintana Roo, Mario Villanueva Madrid, is suspected of having aided narcotics-trafficking organizations. He fled shortly before his term of office expired and at year's end was still being sought by federal authorities. Villanueva Madrid claims that he is innocent and alleges that he is the victim of a political frameup.

On March 24, a court convicted the former Morelos state attorney general, Carlos Peredo Merlo, of tolerating the coverup of the kidnaping, torture, and murder of Jorge Nava Aviles in 1998 and sentenced him to 3 years and 7 months in prison. However, a higher court later reduced his sentence to less than 2 years. The killing of Nava Aviles was discovered when the then-chief of the antikidnaping unit and other members of the Morelos state judicial police were found dumping his body alongside a highway. The court also convicted Cuernavaca's former deputy prosecutor and the former director of the judicial police on related charges in the same case and sentenced each of them to 3 years and 3 months. The remaining persons accused in this case still were awaiting trial at year's end.

In another incident, and following a public campaign by the victim's family, the authorities brought charges against two police officers in February for the 1998 robbery and murder of a foreign visitor in a death that first had been ruled accidental. Video cameras from automatic teller machines showed police officers Lucio Tapia Galindo and Francisco Leon Gonzalez withdrawing money from the victim's account. The two officers also were implicated in similar incidents involving foreign tourists. They fled the country, but were brought back to stand trial. In February the court found them guilty of robbery and murder.

In January the PGR arrested two former Chiapas officials, public security official Absalon Gordillo Diaz and prosecutor Roberto Arcos Jimenez, and charged them with crimes relating to the December 1997 massacre of 45 persons in Acteal, Chiapas. In the first convictions for actual involvement in the Acteal massacre, on July 19 a court sentenced 20 persons to 35-year prison terms on charges including homicide, assault, and illegal possession of firearms. In September the court sentenced a second group of 24 persons to 35-year prison terms on similar charges. Former mayor of Chenalho Jacinto Arias Cruz, believed to have played a significant role in the Acteal massacre, was among those sentenced. At year's end, the court had not ruled on charges against more than 80 other individuals.

The September 1997 killing by police of six youths during a police operation in the Mexico City neighborhood of Buenos Aires remains unresolved. The authorities brought charges against only 6 of the 26 police officers originally accused of the crime, and charged only 1 of the 6, Eleazar Perez Zavala, with homicide.

The courts have convicted 9 former public officials and 13 former police officers of crimes in the 1995 Aguas Blancas massacre of 17 indigenous farmers. In April a circuit court released 15 former Guerrero state police officers without bringing them to trial. Former Guerrero governor Ruben Figueroa is alleged to have masterminded the massacre. However, the authorities never thoroughly investigated this allegation and never charged him with any crime.

In February 1998, Gerardo Villarreal Rodriguez died in Nuevo Leon, after being tortured by four state police officers. His body was discovered the next day in a shallow grave. A local television station broadcast a taped conversation in which state police chief Americo Melendez Reyna asked the state attorney general for help in covering up the crime. Melendez Reyna immediately left office; the authorities prosecuted him but did not bring charges against any of the alleged torturers. In June 1998, in El Charco, Guerrero, army troops killed 12 alleged members of the rebel Revolutionary Army of the People's Insurgency (ERPI), a breakaway faction of the People's Revolutionary Army (EPR), in a firefight. Five individuals were wounded and 22 were arrested. After investigating the incident, human rights NGO's found it suspicious that the military had sustained no casualties if, as the army asserted, there had been an intense firefight between troops and well-armed guerrillas. The authorities later released 20 of the persons arrested during the incident; they kept 2 persons in jail and subsequently arrested 2 more individuals. The Government charged the four persons with rebellion, possession of illegal weapons, and

organized delinquency. The authorities insisted that those detained confessed to being guerrilla leaders, while the accused claimed that the confessions were false and extracted under torture. A judge in Acapulco upheld a ruling in January that the four are presumed members of the ERPI; they remained in prison, and a CNDH investigation into their allegations of torture continued during the year.

There was no information available on the investigation of the June 1998 killing of an alleged migrant smuggler, in which seven members of the Grupo Beta police unit were detained. Officials were investigating whether the victim was killed after he had been detained and whether evidence was planted on him.

There were no new developments in the investigation into the March 1997 incident at San Pedro Nixtalucum, El Bosque municipality, Chiapas, in which police killed 4 persons and detained 24 others during a confrontation between PRI supporters and opponents.

On May 20, a court sentenced former judicial police officer Mario Alberto Gonzalez Trevino to a total of 49 years in prison for the torture and murder in 1990 of Norma Corona Sapien, a cofounder of the Sinaloa Human Rights Defense Commission. Corona Sapien had been investigating narcotics-related violence.

Some killings apparently were politically motivated. Jorge Aguirre Meza, cofounder of the Sinaloa Human Rights Defense Commission and a mayoral candidate in the municipality of Navolato, was killed on January 27. The other two cofounders of the defense commission, Jesus Michel Jacobo and Norma Corona Sapien, were killed in 1987 and 1990, respectively. The authorities have not charged anyone with Aguirre Meza's murder.

In June a police officer in Naucalpan, in the state of Mexico, killed Mauricio Martinez Hernandez, a municipal worker. Union activists and members of the opposition PAN party claimed that the killing was politically motivated. The authorities arrested one officer, who was tried and convicted for murder. A second suspect remained a fugitive at year's end.

Violence in the predominately indigenous state of Oaxaca increased. On May 9, PRD Senator Hector Sanchez Lopez and two companions were shot. All three survived the attack, which occurred near the town of Chalcatongo. There is some dispute whether the attack was politically motivated, and the PGR was investigating.

On May 11, the leader of an indigenous rights movement, Heriberto Pazos Ortiz, was shot and seriously wounded in the Oaxaca capital. Two other politically active indigenous leaders were killed in the same attack. On August 10, the secretary general of an organization supporting the Triqui indigenous group was killed as he left his home.

On October 3, a group of men armed with AK-47 assault weapons attacked an Acapulco city councilor-elect and his family en route to a PRD election victory celebration. The councilor's son was killed, and the councilor seriously wounded. State authorities charged a PRD activist with the crime and alleged that he was affiliated with the ERPI insurgent group. The suspect later repudiated a confession that he alleges was coerced by torture. PRD officials rejected the results of the state investigation as falsified and called for federal intervention. Human rights observers charged that state and federal authorities used the investigation into electoral violence to repress opposition parties and peasant organizations by linking the political opposition to insurgent groups.

On January 5, a group of persons killed villagers in Tzacabel, Chiapas, including a 4-year-old child. One survivor notified the state authorities, who arrested three men on January 8 in connection with the killings. One report of the incident asserted that a landowner hired the suspects to avenge the theft of two weapons. Another report described the attackers as men dressed in black who pretended to be police officers looking for thieves. Chiapas police said that they had detained a total of six persons in the attack, including two women. On the same day, state authorities found the remains of three indigenous persons and were investigating their killing.

In January Raul Salinas de Gortari, brother of former president Carlos Salinas, was convicted of ordering the 1994 murder of PRI leader Jose Francisco Ruiz Massieu. Salinas, who maintains his innocence, was sentenced to 50 years in prison. On appeal, the court reduced his sentence to 35 years' imprisonment.

There has been some progress in solving the disappearances and murders, beginning in 1993, of about 200 women near Ciudad Juarez. Most of the victims were young women working in the in-bond export processing (maquila) sector. According to the state's special prosecutor for crimes against women, the authorities had completed investigations and filed charges or obtained convictions in 80 percent of the 198 cases under their purview from 1993 through 1999. Of the 46 cases discovered in 1998 and 1999, the authorities have investigated and made arrests in the majority of the killings. In February a court sentenced Abdel Latif Sharif to 30 years in prison for committing one of these murders. He is also alleged to have hired two persons to prove his innocence; they have been accused of 16 murders between them. There is no evidence that Sharif or his accomplices had political motives for their alleged crimes.

Several human rights organizations and the U.N. Special Rapporteur on Extrajudicial Executions, Asma Jahangir, who visited the country in June, believe that the limited progress in solving these murders was due to the fact that most of the victims were poor, young women, few of whom had anyone to press the authorities for intensive investigation. However, police incompetence, prosecutorial ineptitude, and lack of investigative resources also hampered the investigation. No one else has been charged in any of the other 184 disappearances or murders, which apparently stopped after Sharif's arrest (see Section 1.b.).

Narcotics-trafficking organizations committed many killings. Human rights groups allege that military and police forces are responsible for some killings generally attributed to narcotics traffickers or other criminals, including some of those whose bodies were discovered in Chihuahua in December (see Section 1.b.).

There were many reports of vigilante killings and violence during the year. For example, in Mexico City there were at least two incidents in which bus passengers overpowered would-be robbers and beat them before police could intervene. Only the alleged robbers were reportedly prosecuted in these incidents.

b. Disappearance

There continued to be credible reports of disappearances. In 1998 the CNDH registered 42 complaints of disappearance, compared with 30 in 1997. It was able to resolve 25 of these cases. The CNDH also is working to establish a nationwide database to assist in the identification of unknown remains. By the end of 1998, 20 states had agreed to take part in this network.

Kidnaping is a seriously underreported crime throughout the country. After the authorities arrested state police officers in Morelos in January 1998 for participation in the operations of a kidnaping ring, the state police force was subsequently purged and no further such incidents were reported. In Baja California human rights groups claimed that 79 kidnapings took place in 1998 and 13 in the first 2 months of the year. The groups blamed the increase on local kidnaping rings and the lack of police response to escalating crime.

As of December 22, a total of nine bodies had been recovered from graves in the state of Chihuahua. The authorities believe that the graves were used by narcotics-trafficking organizations, and that some of the remains found are of the 224 persons reported missing in the state since 1994. The Chihuahua-based Committee for the Defense of Human Rights alleges that military and police forces are responsible for some of the disappearances. It also claims that at least 20 of the disappearances were politically motivated, but there was no evidence offered to support these claims. The Association of Families of the Disappeared Persons also has alleged that the security forces were behind many of the disappearances and has argued that the cases were not investigated properly for that reason.

According to the January Human Rights Watch report, many disappearance cases were in fact cases of prolonged detention by security forces. The report detailed incidents that occurred in previous years, and numerous human rights groups credibly asserted that disappearances continued to occur.

On June 10, Jose Hidalgo Perez, a member of a politically active family in San Cristobal de las Casas, disappeared in the state of Chiapas. No motive was found for his disappearance. On June 24, human remains were found alongside the Nachiv-Yalentay highway and were to be DNA-tested to determine if they belong to Hidalgo Perez. However, the Miguel Agustin pro-Juarez Human Rights Center (PRODH) said that the PGR claimed that the skull was too deteriorated to provide a DNA sample; no one had been arrested in the case by year's end.

There was no progress in the investigations of the 1995 disappearances of peasant leader Gilberto Romero Vasquez or journalist and human rights activist Cuauhtemoc Ornelas Campos.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits torture; however, it continues to be a serious problem. The Constitution excludes as evidence confessions obtained in the absence of the accused's defense attorney, and the law excludes coerced confessions, including those extracted under torture; however, the police regularly obtain information through torture, prosecutors use this evidence in courts, and the courts continue to admit as evidence confessions extracted under torture. The authorities prosecute and punish few officials for torture, and this impunity abets the practice.

In her annual address in June, the president of the CNDH acknowledged that torture continues to be a serious human rights problem. She cited the PGR and the Defense Secretariat as the principal organizations responsible for the use of torture. Although the CNDH reported receiving only 21 complaints of torture in 1998, this figure likely understates the extent of the use of torture. In a report published in July, the U.N. Human Rights Committee expressed concern that laws aimed to prevent torture were inadequate because of the absence of an independent body to investigate allegations of mistreatment. There are persistent reports by nongovernmental organizations (NGO's) of the widespread use of torture by the police and the security forces. Nigel Rodley, the U.N. Special Rapporteur on Torture, reported in January 1998 that torture continued to occur despite the fact that the country had in place an array of legal safeguards.

The authorities punish few officials for torture, which continues to occur in large part because confessions are the primary evidence in many criminal convictions. Poorly trained and inadequately equipped to investigate crimes, police officers often attempt to solve crimes by rounding up likely suspects and then extracting confessions from them by force. Many victims do not report, or do not follow through on, their complaints against the police due to fear of reprisals, thereby hampering prosecution of the perpetrators.

State human rights commissions also received reports of torture allegedly committed by police. The Jalisco state Human Rights Commission charged in September that the state attorney general, Felix Ledezma Martinez, and the mayor of Guadalajara, Francisco Ramirez Acuna, impeded an investigation into an alleged case of torture. The state commission claimed that information was withheld to protect high-ranking members of the Guadalajara municipal police force.

On September 15, the president of the Mexico City Human Rights Commission (CDHDF), Luis de la Barrera, announced that during the CDHDF's 6 years of existence, the Mexico City attorney general's office (PDJDF) was the subject of the majority of its recommendations regarding torture. The commission made 14 recommendations involving 18 alleged perpetrators; 7 against the PDJDF, 6 against the Director General of Prisons, 3 against the Secretary of Public Security, and 2 against the Director General of Public Health. As of September 13, the CDHDF had investigated 44 security personnel for the use of torture. It had 17 of these cases still under investigation, dismissed 5, and had found culpable 22 public officials. However, the authorities had yet to arrest 11 of those found culpable.

Government officials conceded the country's serious human rights shortcomings. U.N. High Commissioner for Human Rights (UNHCHR) Mary Robinson, who visited the country in November, characterized President Zedillo's admission that serious human rights violations occur as a positive sign. In an effort to fight corruption and provide better public security, the Government created a new federal preventive police force. The 12,000-person force is to include approximately 5,000 transferred military personnel, when it reaches full strength. The inclusion of former military personnel led to criticism from some human rights NGO's.

Official corruption and complicity in crime continues to be a source of human rights violations. Some forms of corruption are less serious but illustrate the widespread nature of the problem. For example, in August Mexico City police chief Alejandro Gertz removed ticketing authority from all male traffic police officers in an effort to respond to the public's lack of confidence in police integrity. At the time, Gertz proclaimed that he was doing so because female officers were less liable to become corrupt. However, a few months later Gertz admitted that he was wrong; female traffic officers turned out to be as susceptible to corruption as their male counterparts.

Public security officials also committed more serious crimes. For example, Human Rights Watch reported that in June, federal police officers beat a state police bodyguard who was assigned to protect the editor of the magazine Pulso, who had received death threats after reporting on the drug trade. A 1998 report by the Inter-American Commission on Human Rights (IACHR) described a definite pattern of rape and sexual assault committed by state agents. The Commission stated that it had received information indicating that some women, particularly those in detention, were the victims of sexual assault either by or with the consent of state agents.

In a case that received widespread publicity, in July a court convicted 15 Mexico City mounted police officers for the abduction, sexual abuse, and rape of 3 teenage girls in 1998. In May soldiers allegedly raped two women in Chiapas (see Section 1.g.).

Police extorted money from street children, at times abused homosexuals (see Section 5), violated the rights of illegal immigrants (see Section 2.d.), and used force against strikers (see Section 2.b.).

Prison conditions are poor. Many prisons are staffed by undertrained and corrupt guards, and some lack adequate facilities. The penal system comprises 441 facilities: 4 federal penitentiaries, 8 Federal District prisons, 280 state prisons, and 149 municipal jails. Prison overcrowding is a common complaint, despite an early release program endorsed by the CNDH and legal reforms reducing the number of crimes that carry mandatory prison sentences. For example, La Mesa state penitentiary in Tijuana, built to hold 1,800 inmates, has a prison population of at least 4,300. The situation is no better in other parts of the country. It is estimated that the majority of prisons have populations 50 percent in excess of intended capacity. At a prison undergoing renovation in the state of Chiapas, the authorities assigned up to eight prisoners to cells designed to hold two inmates.

Prisoners complain that they must purchase food, medicine, and other necessities from guards or bribe guards to allow the goods to be brought in from outside. In 1998 Federal District prison director Carlos Tornero Diaz admitted that guards supply 40 percent of the illegal drugs smuggled into the prisons and that inmates lacked sufficient drinking water. While the authorities investigate some prison officials for abusing prisoners, they more commonly dismiss those who commit abuses or charge them with only minor offenses.

Drug and alcohol abuse is rampant in prisons. A Baja California state official estimated that 80 percent of the state's prison population is addicted to drugs. Conflicts between rival prison groups involved in drug trafficking continue to occur.

In many prisons inmates exercise authority, displacing prison officials. Influence peddling, drug and arms trafficking, coercion, violence, sexual abuse, and protection payoffs are the chief methods of control used by prisoners against their fellow inmates. Corruption and poor conditions led to riots and escapes. A March 18 riot at La Loma prison in Nuevo Laredo

reportedly arose from the planned transfer of an inmate considered to be the leader of the prison population. There were several other prison riots, notably in Ciudad Juarez and in the state of Chiapas. According to the Tabasco state government, nine inmates were killed in prison riots following severe flooding in that state.

Although the Constitution calls for separation of juveniles from adult prisoners, men from women, and convicted criminals from detainees held in custody, in practice these requirements were violated routinely as a result of overcrowding and corruption. Moreover, according to information from 1998, prison officials encouraged sexual liaisons between female inmates and male prisoners and guards.

There is no specific law or regulation allowing human rights organizations or other NGO's to visit prisons; however, in practice such visits are allowed in certain situations. The Government granted special advance permission for the ICRC to visit prisoners charged in politically sensitive cases in Guerrero, Chiapas, and Oaxaca.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest and detention; however, the police continued to arrest and detain citizens arbitrarily. Arbitrary arrest and detention were among the most common human rights abuses. Legally, a prosecutor may hold a detainee no more than 48 hours before he must present the accused to a judge, except when the accused is caught in the act or within 72 hours of committing a crime. A great number of disappearances eventually are found to be cases of arbitrary detention (see Section 1.b.).

Reports of arbitrary detention occur with greatest frequency in Tabasco, Guerrero, Chiapas, the Federal District, and Oaxaca. States' attorney general personnel, state police, and the army are the most frequent abusers of detention laws.

The Constitution provides that the authorities must sentence an accused person within 4 months of detention if the alleged crime carries a sentence of less than 2 years, or within 1 year if the crime carries a longer sentence. These periods can be extended if the parties agree. In practice, judicial and police authorities frequently ignored these time limits. Criminal defendants often were held with convicted prisoners. Furthermore, many detainees reported that judicial officials often solicited bribes in exchange for not pressing charges. Those able to pay were released from custody. Corruption is rampant throughout the system.

Judges often failed to sentence indigenous detainees within legally mandated periods. In 1996 the CNDH reviewed 8,661 files of indigenous persons who were detained and recommended the immediate release of 1,727 persons. Of those states with the largest numbers of indigenous prisoners, the CNDH reviewed 2,222 cases in Oaxaca, and recommended 407 releases, of which 296 had been accomplished by the end of 1998; 1,219 cases in Veracruz, with 331 recommendations for release and 245 releases; and 639 cases in Puebla, with 157 releases recommended, and 61 releases.

Federal prosecutors continued to adhere to the recommendation by the National Indigenous Institute (INI) that they drop charges against first-time offenders accused of drug cultivation, as drug traffickers often forced indigenous defendants, who were not made aware of the legal significance of their actions, to grow the crops. The INI also supports programs to provide translators for indigenous defendants and to assist them in obtaining bail bonds.

Some human rights groups claim that activists arrested in connection with civil disobedience activities are in fact political detainees. The Government asserts that the system fairly prosecutes those charged in sometimes violent land invasions for common crimes, such as homicide and damage to property.

The law does not permit forced exile, and it is not practiced.

e. Denial of Fair Public Trial

The judiciary is generally independent; however, on occasion it has been influenced by the executive branch, particularly at the state level. Corruption, inefficiency, and disregard of the law are major problems. The wealthy and the powerful generally benefit from impunity. Judicial reforms have begun to address some of these problems, but full resolution of these problems awaits more extensive and systemic judicial reform. In February and March, the Congress and the states passed constitutional reforms designed to streamline the administration of justice and repeal archaic laws. Human rights groups criticized these reforms, claiming that they effectively allow prosecutors to disregard defendants' allegations of violation of due process during criminal proceedings. The federal court system consists of the Supreme Court, 91 circuit courts of appeal, 49 courts of appeal, and 185 district courts.

Efforts to implement the 1995 judicial reforms continued. The Federal Judicial Council strengthened administrative control over the judiciary, investigated cases of corruption, and removed some corrupt judges during the year. On January 4, the 11 Supreme Court ministers elected reform-minded Genaro David Gongora Pimentel to lead the Supreme Court.

In a report released in January, Human Rights Watch asserted that judicial reforms have done little to improve the problems that plague the justice system. The report states that the continued use of forced confessions, illegal detentions, and fabrication of evidence is ignored by judges and government officials, and that this undermines the democratic process.

Based on the Napoleonic Code, the trial system consists of a series of fact-gathering hearings at which the court receives documentary evidence or testimony. Court officials may add notarized documents (that are not authenticated) into the case file. A judge in chambers reviews the case file and then issues a final, written ruling. The record of the proceeding is not available to the general public; only the parties have access to the official file, although by special motion the victim may have access to it.

The Constitution provides for the right of the accused to attend the hearings and challenge the evidence or testimony presented, and the Government respects these rights in practice. In general, court hearings are open to the public and it is common to find not only the accused, but also relatives of the accused and journalists in the courtroom.

While there is a constitutional right to an attorney at all stages of criminal proceedings, in practice the authorities often do not assure adequate representation for many poor defendants. Moreover, the public defender system is not adequate to meet the demand, although improvements in salaries and benefits began to ameliorate this situation. Attorneys are not always available during the questioning of defendants; in some instances a defense attorney may attempt to represent several clients simultaneously by entering different rooms to certify formally that he was present, although he did not actually attend the full proceedings.

In the case of indigenous defendants, many of whom do not speak Spanish, the situation is often worse. The courts do not routinely furnish translators for them at all stages of criminal proceedings, although this is their right by law, and thus defendants may be unaware of the status of their case. The CNDH, through the Fourth General Visitor's Office, has a program to assist incarcerated indigenous defendants. In 1998 it reviewed 5,799 cases and obtained the release of 802 persons. The National Indigenous Institute has judicial assistance programs for indigenous defendants and advocates on their behalf. The INI also distributes educational and informational material in indigenous languages.

A particularly egregious abuse of due process is the prosecution's ability to use evidence gathered by means of torture. While torture itself is a criminal act, judges routinely allow statements coerced during torture to be used as evidence to convict the accused (see Section 1.c.).

The law does not require civil trial of soldiers involved in civil crimes, and the military continues to handle such cases. The Constitution provides for military jurisdiction for crimes or offenses involving any violation of military discipline. In cases in which a member of the military commits a crime and is arrested by civil authorities, the military has the right to request transfer immediately of the case to military jurisdiction. Although the military retains jurisdiction over its personnel, it has begun cooperating with the PGR on investigations of counternarcotics cases involving soldiers and sailors.

Calls for reform of the military justice system and criticism of it increased. In January the Military Judicial Police arrested five members of a military dissident group, the Patriotic Command for Raising People's Awareness (CPCP), a group composed of military personnel protesting what they called an unjust military justice system. The authorities charged the five CPCP members with the crime of sedition and later arrested the leader of the group, Hildegardo Bacilio Gomez, who led a December 1998 public demonstration against the military justice system. At year's end, the authorities held Bacilio Gomez in jail but had not yet brought him to trial.

Amnesty International reported that Manuel Manriquez San Agustin, allegedly a political prisoner, was released from a maximum security prison in Guadalajara and absolved of a murder conviction on March 29 after the IACHR recommended his release. Manriquez, an Otomi Indian, was accused of being a member of the EPR and was detained on murder charges in 1990. His conviction was based on little evidence except his confession, which was obtained under torture.

The only political prisoner is General Jose Francisco Gallardo, who maintains that he was sentenced to 28 years' imprisonment for speaking his mind on the advisability of having a military ombudsman (see Section 4).

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for the rights to privacy, family, home, and correspondence, and the law requires search warrants; however, there were credible reports that unlawful searches without warrants were common.

In November 1996, Congress passed the Federal Law Against Organized Crime, which--among other innovations--allows for electronic surveillance with a judicial order. The law prohibits electronic surveillance in cases of electoral, civil, commercial, labor, or administrative matters.

In March 1998, PRD Senator Layda Sansores asserted that the Government was responsible for a wiretapping operation in Campeche state. The Government denied involvement, and the PGR charged three persons found at the scene with illegal wiretapping. The investigation was still pending at the end of the year.

The Constitution states that all persons have the right to make free, responsible, and informed decisions on the number of children they choose to have. The 1984 General Health Law provides for criminal action against those who pressure a woman to undergo sterilization procedures or perform such procedures without the woman's consent. Independent agencies believed that forced sterilization exceeded by several times the number of known cases, but the overall scope of the problem was difficult to quantify. Women may not realize that procedures have been performed until after the fact, and many victims are reluctant to file complaints, although there are mechanisms for filing formal complaints with the National Medical Arbitration Commission and with the national and state human rights commissions. Nevertheless, there have been reports of possible violations of informed consent standards in the state of Guerrero; these charges have not been substantiated.

In 1997 state health services workers encouraged men to have vasectomies in exchange for government social benefits. In May some of those affected lodged complaints with the state human rights commission. In December the commission issued a recommendation confirming that the men who had undergone vasectomies were in fact threatened with the withholding of benefits. The commission also found that once the procedures had been performed, the men were not paid the promised benefits. In previous years, NGO's have received similar complaints that women had undergone tubal ligation procedures without informed consent, sometimes under similar circumstances.

g. Use of Excessive Force and Violations of Humanitarian Law in Internal Conflicts

There were numerous allegations of the use of excessive force and the violation of international humanitarian law. Incidents of conflict in Chiapas between the security forces and EZLN sympathizers and in Guerrero between the army, the EPR, and the ERPI led to many of these accusations. UNHCHR Robinson suggested in November that the Government consider creating a military human rights ombudsman to combat impunity in the armed forces. The military continued to maintain a large presence throughout the state in response to the EZLN-backed uprising that began in 1994.

The peace process in Chiapas between the Government and the EZLN remained stalled, although in September the Government proposed a new peace initiative to restart talks. At that time, the Government proposed that the Senate take up its legislative initiative on indigenous rights; invited the EZLN to return to dialog, possibly through a mediator; suggested the creation of a new law enforcement office to investigate human rights abuses committed by individuals or armed civilian groups; and offered to release prisoners accused of being EZLN sympathizers but not charged with violent crimes. The initiative also proposed activation of the verification commission under the 1996 San Andres Accords, called on the EZLN to permit to social development of indigenous communities in Chiapas, and offered a government negotiator with decisionmaking authority. The EZLN did not accept the Government's offer.

In August a military force occupied the area surrounding the village of Amador Hernandez to protect road construction crews, increasing tension in the region. On August 25, the army and the EZLN clashed near San Jose la Esperanza. A total of seven persons on both sides were injured. This was the first clash between the army and the EZLN since June 10, 1998.

There have been credible reports of violent incidents and murders committed by armed civilian groups and local political factions in Chiapas. The National Democratic Federation alleges that the group Peace and Justice, which it described as a paramilitary group, was responsible for the murders of 53 Zapatista sympathizers since 1995. Another group alleged to have committed human rights abuses in Chiapas is the Revolutionary Indigenous Movement against the Zapatistas. From January 1998 through August 1999, the army confiscated 431 weapons from civilians in the Chiapas zone of conflict. The Chiapas state Attorney General's office claimed to have disbanded 39 gangs and confiscated 132 firearms within the same time period.

In the southern states of Oaxaca and Guerrero, there have been attacks by the EPR, the EPRI, and other rebel groups on government property. There have been numerous accusations in Guerrero that police and army personnel have used excessive force during operations against these groups.

On April 20, military forces, in response to an attack that injured one soldier, occupied the municipality of Tlacoachistlahuaca, Guerrero. Also on April 20, two local Mixtec men were reported missing, and two female relatives (who were searching for them) alleged that they were raped by soldiers stationed in the area. On May 8, the military conceded that soldiers had killed the two farmers during an armed confrontation but did not respond to the women's allegations of rape. The state Attorney General's office, citing lack of evidence, declined to pursue the allegations of rape. On September 22, the EPRI was blamed for an attack on a military convoy on a highway in the state of Guerrero, near the town of Ayutla de los Libres, which injured two soldiers.

The human rights network All Rights for All contended that the Government's response to the guerrilla presence in Guerrero has resulted in an increase in reports of human rights violations.

Armed civilian groups, controlled by local political bosses loosely affiliated with the PRI, were alleged to have committed many human rights violations in Chiapas, including the Acteal massacre. NGO's, such as the PRODH, the Fray Bartolome de las Casas Human Rights Center in Chiapas, and the Mexican Commission for the Defense and Promotion of Human Rights (CMDPDH), identified at least nine such groups. The NGO's, and some press accounts, contended that these groups were not only the private armies of local bosses, but also army surrogates armed by the military and used to attack the EZLN. The Government denied these allegations and likewise rejected the existence of paramilitary groups.

In December 1998, the Fray Bartolome de Las Casas center and the PGR published conflicting reports on the Acteal massacre. The Fray Bartolome report blamed the Government for sponsoring armed civilian groups in Chiapas and for failing to protect the victims. The NGO accused the Government of waging "low-intensity warfare" in Chiapas and stated that the Government was responsible for the massacre. The PGR attributed the massacre to a history of local confrontation, the presence of the EZLN, an absence of the rule of law, and the neglect of local enforcement officials.

The military continues to deny any responsibility for abuses committed during the early stages of the Chiapas rebellion in 1994. The military authorities who have jurisdiction failed to punish any military personnel or government officials for committing abuses, although the CNDH issued an interim report in May 1994 finding that there was reason to believe that the military had injured or killed civilians in aerial attacks and that there were summary executions, illegal detentions, and instances of torture.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government generally respects these rights in practice. The mass media are not subject to formal censorship by any element of the Government; however, there were reports of some self-censorship. In addition, threats and attacks on journalists--some reportedly by federal, state, or local authorities--hindered press freedom. Nonetheless, the media were more free and more independent than at any time in the country's history. Many observers believe that drug trafficking organizations or corrupt security personnel in the pay of such groups carry out most attacks on the media.

The traditional cozy relationship between the Government and the media that tilted coverage and editorial opinion in the Government's favor has diminished but not disappeared entirely. The Government no longer controls the import of newsprint but does retain control over broadcast licensing, which critics claim led some broadcast media to practice self-censorship. Accordingly, old habits of accommodation lingered, and the editorial line of key news organizations maintained a bias in favor of the Government. The persistence of official influence--and its greatest concentration--was most apparent in television. Instead of paying a 12.5 percent tax on advertising revenues, television broadcasters provided free broadcast time to the Government, which gave it convenient access to this powerful medium. Official advertising in the media continues but disguising it as news coverage is more common at the state than at the national level. Cash and noncash payments to journalists persisted but were not as common as they once were, and legislation to end this practice was enacted.

The many credible reports of attacks on journalists constituted the most serious problem for press freedom. A report issued by 4 NGO's recorded 240 attacks of various types against journalists during 1998, compared with 187 during 1997. These numbers include all aggressive acts against the media as reported in the media. According to the report, government institutions (including federal, state, or local police) or officials were responsible for 40 percent of the incidents. The Manuel Buendia Foundation, one of the NGO's, concluded that the vast majority of attacks were intended to intimidate. During the first 7 months of the year, the CNDH program on aggression against journalists investigated 22 complaints of attacks on journalists; most were for assault or intimidation. One, from July in the state of Morelos, was for murder. The CNDH began an investigation of that case.

A report by the Committee for the Protection of Journalists of the Mexican Academy of Human Rights selected five cases that, in its judgment, are indicative of attacks on freedom of the press. Three of the cases, all from the northern states, were closely related and linked to narcotics trafficking. Two other cases took place in southern states and were tied to political actors. In the first case, Benjamin Flores Gonzalez, the editor of the local daily newspaper La Prensa in San Luis Rio Colorado, Sonora was murdered in 1997 after publishing stories about a local narcotics trafficker. This case highlighted the continued impunity for the alleged murderer, who recently was released from jail on unrelated charges. In the second case, Sergio Haro Cordero, director of the Baja California weekly Sietedias began receiving death threats in April after writing about the foregoing case. In the third case, journalist Jesus Barraza Zavala of the weekly Pulso in Sonora, again writing about the same case, received death threats, and federal police officers reportedly attacked his state police bodyguard in April and May (see Section 1.c.). In the other two cases, public authorities and common criminals harassed Carlos R. Menendez Navarrete, editor of the Diario de Yucutan newspaper in Merida, Yucutan, and Luisa Veronica Danell Monter, correspondent for the Para Empezar television program in Villahermosa, Tabasco, after they reported negatively on local PRI politicians.

There was no information available about the PGJDF investigation of the February 1998 killing of Luis Mario Garcia Rodriguez, a reporter for the Mexico City daily newspaper La Tarde. Garcia was shot and killed very close to a Mexico City police station, and witnesses stated that the perpetrators were from the PGR. Garcia had reported on PGR corruption and charged that PGR officials were collaborating with notorious drug traffickers.

Television news independence has been enhanced by greater political pluralism, generational change in media leadership, and growing competition for advertisers and viewers, which continued to separate government and media interests. Moreover, as much of the national media developed higher journalistic standards and independence over the past 10 years, government influence declined. The media showed a high degree of editorial independence, particularly in the capital and other major urban centers. Direct criticism of the Government, especially in radio and the print media, was severe and commonplace.

There was one complaint from a French journalist that the authorities denied an entry visa without explanation.

The Constitution recognizes academic freedom in higher education, and the Government respected this provision in practice. Beginning on April 20, some students at the National Autonomous University of Mexico (UNAM) occupied campus buildings and shut down the institution. The strike began when the authorities announced an increase in tuition but quickly evolved from a protest by some students into a more generalized attack on the national political system. The university administration made the tuition hike voluntary but had not met other striking students' demands at year's end.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for the right of assembly, and the Government respects this right in practice. The only requirement for holding demonstrations is that groups that wish to meet in public areas must inform local police authorities in advance. Organized, peaceful demonstrations occur frequently throughout the country.

The police showed restraint and generally avoided confrontation with the UNAM student strikers, who conducted periodic marches through the streets of Mexico City (see Section 2.a.).

On October 14, municipal police forcibly removed strikers who were blocking a major thoroughfare in Mexico City. The authorities later investigated two policemen for use of excessive force against prone strikers after the media broadcast videotape showing the officers beating and kicking several unresisting strikers. An internal police investigation absolved the policemen, but city officials vowed to impose administrative sanctions on the officers.

The Constitution provides for freedom of association, and the Government respects this right in practice. Political parties, opposition, and independent associations functioned freely without government interference or restriction. The Federal Electoral Code recognizes national political parties as well as political associations. Political associations can participate in elections through an agreement with a political party but are not allowed to use their names or symbols during the election campaigns. Political parties do not have legal status until they receive their official designation from the Federal Electoral Institute (IFE). The IFE currently recognizes 11 political parties and 31 political groups.

Citizens are free to associate and may form private or charitable associations. However, in 1998 the Mexico City legislature passed a law that gave the city government more influence over private charities. The more than 8,000 NGO's active in the country are an important and vocal part of civil society. The Government was accused of harassing NGO's, especially in the state of Chiapas (see Section 4).

c. Freedom of Religion

The Constitution provides for the right to practice the religion of one's choice, and the authorities generally respect this right in practice; however, local officials sometimes infringed on this right. In November 1998, the Government and representatives of many religious denominations signed a Religious Code of Conduct that reaffirms freedom of religion. The law bars clergy

from holding public office and from advocating partisan political views.

The authorities at times used immigration law to restrict the activities of religious workers, particularly in the state of Chiapas (see Section 2.d.). Some groups claim that it is government policy to keep foreign religious practitioners out of Chiapas and Oaxaca. There also have been incidents of violence between religious groups in Chiapas (see Section 5). The Government lifted almost all restrictions on the Catholic Church in 1992. The Catholic Church and other religions maintain their own schools. Nonetheless, the Church's ability to own and operate mass media is limited, and it asserts that there are restrictions on the running of schools and the raising and spending of funds.

To obtain legal status, religious organizations must register with the Office of Religious Affairs in the Secretariat of Government. Since 1992 over 5,000 religious associations have been registered.

Relations were difficult between the Catholic diocese of San Cristobal de las Casas, Chiapas, and the Government. The Government blamed Samuel Ruiz, the former Bishop of the diocese, for exacerbating its problems with the EZLN and the international human rights community (see Section 1.g.). The diocese complained that its lay catechists constantly were threatened and harassed, and that foreign clergy working for the diocese could not have their visa status clarified. In May the IACHR declared that the June 1995 deportation of Catholic priests Loren Riebe, Rodolfo Izal, and Jorge Baron was a violation of their right to religious freedom and recommended that the Government investigate and sanction officials involved in the case. The Government criticized the IACHR's ruling as interference in internal affairs and declared it invalid.

The non-Catholic Christian population was growing in Campeche, Chiapas, Yucatan, and along the northern border. The Evangelical Commission in Defense of Human Rights claimed that the authorities had expelled 35,000 evangelicals from San Juan Chamula, Chiapas, in the last 30 years. Traditional religion includes indigenous practices that cause friction with Christian religions. Tribal chieftains or leaders of the traditional, syncretist religions are the usual organizers of the expulsions of evangelicals.

Municipal authorities expelled 70 evangelical Christians living in San Juan Chamula in 1998, but state officials assisted their return later that year. However, the children of evangelicals have been denied access to the local public schools in six nearby communities since 1994. Societal harassment of, and pressures against, evangelical Christians continued to be a problem (see Section 5).

On June 15, local police in Mitziton, Chiapas, arrested 13 evangelicals who were building a Protestant church. After intervention by state authorities, the police released them after 3 days; however, the local authorities prevented them from completing construction of the church.

In certain indigenous communities practicing traditional religion, a long history of religious intolerance and expulsions exists. In these communities, religious diversity is viewed as a threat to indigenous culture. The Government failed to intervene to prevent local officials from threatening, harassing, attacking, and expelling evangelical representatives (see Section 5).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for the right of free movement, and the Government generally does not restrict movement of its citizens into, out of, or within the country, except in Chiapas where the Government attempts to keep persons away from EZLN areas. The army and federal immigration authorities maintain strict checkpoints in parts of Chiapas. The focus of the checkpoints is the verification of tourist activities by persons with tourist visas. Church and human rights activists claim that the Government is fostering an antiforeigner climate. In addition, church groups complain about legal requirements that foreign religious workers must secure government permission to visit the country for religious purposes and that the Government limits the number of visas granted to each religious group.

Corrupt police sometimes violated the rights of illegal immigrants. Illegal immigrants rarely file charges in cases of crimes committed against them, because the authorities generally deport immediately such persons who come to their attention; any pending case brought by an illegal immigrant is subject to dismissal because the person is no longer present. There were several incidents on both the southern and northern borders in which intending immigrants either were injured or killed. One such incident occurred on March 17 near Mexicali, Baja California, in which the Federal Fiscal Police allegedly beat four persons. In May the authorities arrested two agents of the Fiscal Police in connection with this incident; they remained in custody at year's end. There were also credible reports that police, immigration, and customs officials were involved in the trafficking of illegal migrants (see Section 6.f.).

The law provides for protection of foreigners who face political persecution. The Government accepts the principle of first asylum and reviews each claim on a case-by-case basis with the assistance of the office of the U.N. High Commissioner for Refugees (UNHCR). In June UNHCR Sadako Ogata visited Mexico, signing agreements with the government that strengthened protections for refugees. During her visit, Ogata attended ceremonies regularizing the status of those former Guatemalan refugees who chose to remain in Mexico. The Government cooperates with the UNHCR and other humanitarian organizations in assisting refugees. In conjunction with the UNHCR, the Government completed a repatriation program for Guatemalan refugees desiring to return home after having fled their country during the civil war, which ended in 1996. During the course of this program, a total of 42,641 persons returned to Guatemala and a further 22,144 were granted immigrant residence status or Mexican nationality.

There were no reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

The Constitution provides citizens with the right to change their government peacefully through periodic elections. Since the party's founding in 1929, the PRI has dominated politics, controlled the Federal Government, and won every presidential election. The PRI has maintained power, in part, through public patronage, use of government and party resources, and electoral fraud. However, political change continued to alter the nation's politics, and opposition parties continued to gain strength nationally and locally. As a result of electoral reforms approved and implemented in recent years, the political and especially the electoral process have become more transparent. While elections are open and generally fair, some abuses continue to occur.

The legislature amended the Constitution to allow the eligible 9 million citizens resident overseas to vote in national elections; however, owing to differences over the costs and requirements for voting, the Senate failed to act on necessary implementing legislation that would have made overseas voting possible for the 2000 election.

Presidents are elected every 6 years and cannot be reelected. President Ernesto Zedillo chose to forgo the traditional process of hand-picking his party's candidate for the presidential election in 2000. This decision was part of the democratic transition taking place within the PRI. The three political parties that dominate national politics--the PRI, PAN, and PRD-- all announced that they would hold some form of primary election to choose their presidential candidate for the 2000 election; however, the PRD and the PAN had only one entrant into their internal nomination process. On November 7, about 10 million persons voted in the contested primary held by the PRI. Of the 4 candidates, Francisco Labastida won by taking 272 of the 300 electoral districts.

As of September, in the Chamber of Deputies, the PRI holds 238 seats; the PAN 117; the PRD 124; the Labor Party (PT) 11; the Green Ecologist Party (PVEM) 5, and there are 5 independents. The PRI holds 73 seats in the Senate; the PAN 31; the PRD 16; the PT one; and there are 6 independents. Legislators can and do change their party affiliation frequently.

On the state level, the PRI governs 21 states; the PAN 6; the PRD 1; and opposition coalitions govern in 3 states. On the municipal level, opposition strength is well established. The PRD governs the Federal District and the PAN governs 13 of the 20 largest metropolitan areas.

In the February 7 elections in the state of Guerrero, the PRI candidate was elected governor by a margin of 2 percent. The opposition charged that the vote was tainted by fraud. As a result of legal challenges filed by the PRD, the state electoral commission eventually invalidated the votes cast in 18 of the more than 3,000 voting booths; this action did not change the results. In the election in the state of Mexico on July 4, also won by the PRI candidate for governor, a survey reported in the Reforma newspaper indicated that one-third of voters received a gift from the state PRI for their vote. These acts and other irregularities caused the PAN and the PRD to file protests with the state electoral board.

The Federal Electoral Institute, operating with full autonomy, organized the federal elections for the Congress and in 1997 for the mayor of Mexico City. (In subsequent elections, Mexico City is to have its own electoral commission.) The IFE has implemented extensive constitutional and legislative reforms passed in 1996 to help prevent electoral fraud and to create more uniform conditions for political party participation by regulating campaign finance, advertising, and other areas. The IFE also has provided support to state electoral institutes in running state and local elections and was instrumental in overhauling electoral district boundaries to reflect demographic shifts.

Although there are no legal impediments to their full participation, women are underrepresented in government and politics. However, the three largest political parties are attempting to increase the number of women who run for elected office through formal and informal means. They have utilized quotas requiring that a certain percentage of candidates on a party list be female and in practice have supported female candidates over equally qualified male candidates. The PRD has set a 30 percent quota for female candidates; 22 percent of its leadership is female, and it elected a female party president in July. The PAN has used more informal methods, and 23 percent of its leadership is female. PRI party rules mandate that a certain number of spaces on the candidate lists be reserved for women, and 12 percent of the party leadership, including its president, is female.

Women hold approximately 16 percent of the seats in the Congress. There are two female cabinet members. The mayor of Mexico City is a woman. No women serve as governors or justices on the Supreme Court. Constitutional changes in 1996 expanded the rights of indigenous people to elect representatives to national office according to traditional "usages and customs," rather than standard electoral law. These traditional customs vary from village to village. In some villages, women have neither the right to vote nor to hold office. In others, they can vote but not hold office. Women were excluded systematically from the political process by traditional "usages and customs" in most of Oaxaca state and expected to face the same phenomenon in the state of Quintana Roo.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A wide variety of human rights groups operate largely without government restriction, investigating allegations of human rights abuses and publishing their findings on human rights cases. Government officials generally have become more cooperative and responsive to NGO views; however, the Government used vigorous enforcement of its constitutional prohibition on foreigners engaging in political activities to hinder the work of foreign human rights monitors, and it restricted the activities of many human rights observers and religious workers in the state of Chiapas.

After the December 1997 Acteal massacre, foreign concern over Chiapas increased significantly, and many foreigners traveled to that area, often on tourist visas, to learn first-hand about conditions there. Members of human rights groups also made the journey, several with tourist visas, to observe the human rights situation and donate supplies. However, when individual foreign activists in Chiapas acted in ways that the Government considered political and inconsistent with their tourist status, the Government expelled them.

According to a report issued by the NGO Global Exchange, in collaboration with the PRODH and the CMDPDH, the authorities expelled 144 human rights observers from the country in 1998. Most of these expulsions were made under Article 33 of the Constitution, which allows the President to expel foreigners whose presence is judged to be "inconvenient." Human

rights groups contended that the use of this provision was unconstitutional, and the Government did not use that article in 1999. Instead, the authorities issued a letter of departure to those individuals deemed to be engaging in unauthorized political activities in pursuit of human rights objectives, which required them to leave the country upon the expiration of their visas.

On September 13, Thomas Hansen, former director of Pastors for Peace, won a court order overturning his deportation from the state of Chiapas in February 1998. The Government has refused his subsequent requests for visas.

In May 1998, the National Migration Institute began requiring persons who wished to enter the country to monitor the human rights situation to go through a new application process. This application process required, among other things, a 30-day advance application, a 10-day limit on visits, a limit of 10 visitors per NGO, a detailed travel itinerary, and submission of an agenda. Domestic and foreign NGO's objected to these new visa requirements. Human Rights Watch argued that, taken together, the rules appeared designed to restrict human rights monitoring and give the Government the right to decide which human rights organizations were legitimate. While government officials promised that the process would improve access for human rights observers, the effect has been the opposite. Human rights observers reported that the process is difficult, complex, rarely results in visa issuance, and interferes significantly with their ability to monitor human rights violations. Immigration officials have used this new visa requirement to remove from the country religious workers whom they judge to be engaging in human rights activities. They also have used this procedure to restrict the activities of human rights monitors.

The PRODH and human rights lawyer Digna Ochoa were victimized by threats, harassment, and attacks. The most serious incident occurred on October 28, when unknown assailants held Ochoa captive for 9 hours in her home. According to Ochoa, her captors tied her to a chair, covered her face, and interrogated her regarding guerrilla groups operating in the country. Then, they left her bound next to an open canister of propane gas, but she was able to free herself and escape. The PGJDF investigated this incident and four other threats against the PRODH. In August the PGR and the Secretariat of Government offered their assistance in the investigation. In November the Inter-American Court of Human Rights ordered the Government to provide protection to Ochoa and members of the PRODH. The investigation continued at year's end, and human rights NGO's began a dialog with federal officials regarding the safety of human rights workers.

Credible NGO's reported that human rights workers in several states received death threats while working on cases that implicated government officials. For example, in Guerrero Abel Berrera of the Tlachinollan Mountain Human Rights Center implicated members of the army in human rights abuses and subsequently received death threats.

The National Human Rights Commission, established by the Government in 1990, has steadily improved its credibility. In an important vote that was expected to provide greater political autonomy to the CNDH, the Senate approved legislation that allows it, rather than the President, to appoint the commission's president. Some NGO's were critical of the Senate's decision, fearing that it makes the CNDH more susceptible to political pressure. Utilizing these powers for the first time, in November the Senate replaced the sitting president of the CNDH prior to the expiration of her term in office. The Senate named legal scholar Jose Luis Soberanes to a 5-year term as CNDH president. This is the first time since the creation of the CNDH that the executive branch did not play a role in the selection process. Although most NGO's have a favorable opinion of the CNDH, many are critical of its method of presenting information, especially the reporting of compliance with recommendations. NGO's also criticized the CNDH's reliance on former government security or judicial personnel as investigators of human rights abuse allegations.

In July the U.N. Special Rapporteur on Extrajudicial, Summary or Arbitrary Executions, Asma Jahangir, visited the country at the Government's invitation. Jahangir suggested that the Government invite international observers for the 2000 presidential elections. The IFE invited international observers for the 1997 Congressional elections and has invited them for the 2000 presidential elections. Jahangir had not made any formal recommendations regarding her mandate at year's end. The Foreign Relations Secretariat criticized Jahangir's public comments that impunity would persist unless the Government undertook legal and political reform, saying that she was "completely misinformed."

In November Mary Robinson, the U.N. High Commissioner for Human Rights, made a 6-day visit and met with President Zedillo, other officials, and NGO representatives. Robinson signed a memorandum of intent with the Government that provides for technical assistance and further cooperation with the United Nations. She characterized the human rights situation in the country as "serious" and highlighted official impunity and poor administration of justice as areas of particular concern. She told a press conference that the Zedillo administration had demonstrated a commitment to improving the human rights situation. During her trip she also visited Chiapas, where she voiced concern about the size of the military presence, which she said contributed to an environment of impunity and conflict. Government officials expressed moderate criticism of Robinson's comments on Chiapas, emphasizing that deployment of a military force to the region was exclusively a sovereign decision.

The military jailed General Jose Francisco Gallardo Rodriguez in 1993 on a range of charges, including embezzlement and dishonoring the military, but he maintained that military authorities were persecuting him because he wrote an academic dissertation calling for the establishment of a human rights ombudsman's office in the military. Since 1996 the IACHR and Amnesty International had called for his immediate release. In March and April 1998, two different military tribunals convicted General Gallardo on charges of illegal enrichment and diversion of funds and sentenced him to 28 years in prison. At year's end, he remained in jail in the state of Mexico, where he gives telephone interviews and receives regular visits from family members. General Gallardo has not complained of any mistreatment while in custody.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution states that men and women are equal before the law. It also provides that education should avoid "privileges of race, religion, groups, sexes, or individuals." These provisions are not enforced effectively, although the Government continues to make progress in efforts to do so.

Amnesty International has reported that homosexual men and women were likely to be victims of abuse and violence. The Citizen's Commission against Homophobic Crimes reports that there are an average of four murders committed due to sexual orientation per month, and the consensus among gay rights groups is that the police fail to investigate these crimes seriously.

Women

The most pervasive violations of women's rights involve domestic and sexual violence, which is both widespread and vastly underreported. A rape is committed in Mexico City on average every 6 minutes. Victims report only 23 percent of rapes, and the courts penalize only 23 percent of the men eventually charged with rape. The Center for Attention to Intrafamily Violence expected to receive a total of over 13,500 complaints of domestic violence during the year. Women are reluctant to report abuse or file charges, and even when notified, the police are reluctant to intervene in what society considers to be a domestic matter. Police also are inexperienced in these areas and unfamiliar with appropriate investigative technologies. According to press accounts, reports of domestic violence in Jalisco increased 86 percent in 1997. The authorities began to implement and enforce the legislative reform initiative on intrafamily violence Congress passed in December 1997. This law had three main objectives: to discourage and punish intrafamily violence, establish protective measures for victims, and educate the public. The legislation expanded the crime of rape to include spousal rape, involving married or common-law couples.

Over 1 million women each year, according to the CMDPDH, seek emergency medical treatment for injuries sustained because of domestic violence, the fourth highest cause of death for women. Groups such as the nongovernmental Center for Research and Care of Women are working to educate both men and women in an effort to counter the widespread view of domestic violence as a private act that is common (and therefore tolerated) and to deter future violence.

Under certain circumstances limited to statutory rape of a minor between the ages of 12 and 18, the Criminal Code provides that a judge may dismiss the charges if the persons involved voluntarily marry. In practice, this provision is invoked rarely.

In the case of the approximately 200 women murdered in the Ciudad Juarez area since 1993 (see Section 1.b.), in 1998 the CNDH determined that the Chihuahua state attorney general's office's inadequate response to the murders had violated the human rights of the victims and their families and recommended that the state attorney general and the mayor of Ciudad Juarez be investigated for negligence. In the same year, the authorities appointed a special prosecutor and hired foreign experts in serial killings to advise investigators.

The Federal Criminal Code includes penalties for sexual harassment, but victims must press charges. Many female victims were reluctant to come forward, and cases were difficult to prove. Sexual harassment in the workplace was considered widespread by NGO's and women's agencies.

Although the Constitution provides for equality between the sexes, neither the authorities nor society in general respect this in practice. The legal treatment of women's rights is uneven. Women have the right to own property in their own names and to file for separation and divorce. However, in some states a woman may not bring suit to establish paternity and thereby obtain child support, unless the child was a product of rape or cohabitation, the child resides with the father, or there is written proof of paternity.

Within the CNDH, the Office of the First Inspector General is devoted solely to protecting the rights of women. This office is staffed by a variety of professionals, including lawyers, sociologists, and doctors.

The Constitution and labor laws provide that women shall have the same rights and obligations as men, and "equal pay shall be given for equal work performed in equal jobs, hours of work and conditions of efficiency." However, women in the work force generally are paid less and are concentrated in lower-paying occupations. According to an academic study, even though girls and boys attend school at similar rates, a woman on average needs 4 more years of education to earn the same salary as a man in a comparable position.

Labor law includes extensive maternity protection, including 6 weeks' leave before and after childbirth and time off for breast feeding in adequate and hygienic surroundings provided by the employer. During pregnancy, employers are required to provide a woman full pay, not to dismiss her, and to remove her from heavy or dangerous work or exposure to toxic substances. In order to avoid these expensive requirements, some employers, including some in the maquila industry, reportedly deliberately violate these provisions by requiring pregnancy tests in preemployment physicals, by regular examinations and inquiries into women's reproductive status (including additional pregnancy tests), by exposing pregnant women to difficult or hazardous conditions to make them quit, or by dismissing them. A report released in 1999 by Human Rights Watch indicated that the Government not only was aware of such practices and failed to take action to punish or prevent them, but also publicly made excuses for companies that violated the law. The U.S. National Administrative Office (NAO), under terms of the North American Agreement on Labor Cooperation (NAALC), the labor side agreements to the North American Free Trade Agreement, accepted a challenge to these practices in the maquila industry and in January 1998 recommended ministerial consultations. As a result, the U.S. and Mexican Secretaries of Labor participated in a conference in Merida, Yucatan, in March on gender discrimination in employment. In addition, the U.S. and Mexican NAO's organized cross-border outreach sessions in August on the rights of women in the workplace in McAllen, Texas and Reynosa, Tamaulipas. The conference and the outreach sessions concluded that discrimination does exist, that it is not sanctioned by law, and that the authorities have taken steps to inform women workers of their rights to bring complaints against such practices by publishing and distributing brochures and developing networks of government offices, which together with NGO's work to raise awareness of the problem and available remedies.

In order to protect women's labor rights, the Ministry of Labor made 23,138 safety and hygiene inspections in private factories and public institutions during 1996. However, while the Government increased the number of federal inspectors during 1997 and negotiated agreements with an increasing number of state governments to expand and coordinate labor inspections better, the number of maquila plants far outstrips what state and federal inspectors can monitor.

In 1995 the CNDH found that the largest number of complaints against health care institutions involved negligence or abuse during childbirth by medical personnel and charges of forced sterilization. It said that the number of such complaints had grown, in large part due to women's increased awareness of their rights.

There continued to be credible allegations of forced sterilization (see Section 1.f.).

The National Women's Program (PRONAM) monitored the situation of women, made recommendations to the Government regarding women's issues, and worked with government agencies, international organizations, and NGO's to support women's causes. PRONAM and the National Statistics Institute compiled gender-specific statistics to ascertain more accurately the status of women. The International Labor Organization (ILO), the Secretariats of Labor and Foreign Relations, and PRONAM also promoted the status of women in the workplace. In addition, PRONAM and the U.N. Children's Fund (UNICEF) initiated an advertising campaign attacking social stereotypes and discrimination against women. Children

Children under the age of 15 make up 35 percent of the population, and the median age of the population is 21. The Government maintains several programs to promote child welfare that support maternal and infant health, provide stipends for educating poor children, subsidize food, and provide social workers; however, problems in children's health and education remain. The CNDH receives numerous complaints about the services provided by the Secretary of Health, the Secretary of Education, and the Institute of Social Security. Although 9 years of education are compulsory, the director of the National Education Council reported in August 1998 that 1.7 million school-age children were not in school because their poverty obligated them to work. In the same year, children from Jalisco visited the state congress to protest the use of child labor in the streets after 9:00 p.m. The legal minimum age for employment is 14.

UNICEF classified the country as "lacking adequate strategies" to combat malnutrition among children and reported that 30,000 children die each year as a result. The problem of child labor is particularly pronounced among migrant farming families, although programs recently have been instituted to allow for portability of educational credentials. There is a large population, estimated at 40,000, of vulnerable street children in Mexico City. UNICEF and the National Institute for Integral Development of the Family, in a study of working children in the 100 largest cities, estimated that 150,000 children work in those cities. (NGO's maintain that the total is higher.) Street children often become involved with alcohol, drugs, prostitution, petty thievery, and increasingly, violent crimes. Corrupt police officials sometimes exploit these children by pressuring them to commit petty crimes and extorting money from them. The CNDH attempted to protect children's rights by educating children on their rights and reviewing legislation to ensure compliance with relevant international conventions.

A report by the Center for Research and Advanced Study in Social Anthropology counted 5,000 minors, 90 percent of them female, working as prostitutes or subjects of pornography. In 1998 police in Guadalajara broke up a child prostitution ring; they arrested 17 adults and 12 girls on charges including corrupting minors and pandering. The arrests spurred press investigations into juvenile crime, as well as meetings with city officials and local NGO's.

The Government and various NGO's have programs directed at children that address human rights issues. Generally, the purpose of these programs is not only to protect the rights of children but also to instill a generational respect for human rights through educational programs. An example of this educational approach is the Tree House (La Casa del Arbol), an interactive learning project sponsored by the Human Rights Commission of Mexico City.

People with Disabilities

Estimates of the number of disabled persons ranged from 2 to 10 million. Disabled persons and their specific disabilities are to be counted separately in the 2000 census so that the Government can learn what services are most needed. In Mexico City alone, 124 NGO's dealt with issues affecting the physically disabled.

Twenty-seven of the 31 states have laws protecting the disabled. The law requires access for the disabled to public facilities in Mexico City but not elsewhere in the country. However, in practice most public buildings and facilities do not comply with the law. The Federal District also mandated access for physically disabled children to all public and private schools. The

Mexico City secretary of education, health, and social development maintained that 78 percent of these children received some schooling.

Mental Disability Rights International (MDRI), an NGO, discovered mistreatment and violations of the rights of mentally disabled persons within government mental health facilities. Visits to institutions during 1996-99 revealed abuses including inhuman and degrading treatment, misuse of physical restraints, and neglect that in some cases led to deaths of patients. MDRI alleged that the process through which persons are legally admitted to state institutions is conducted without oversight by a judicial or independent body, which can lead to a total loss of independent decisionmaking or consent to treatment by patients.

Indigenous People

The indigenous population, long subject to discrimination, repression, and marginalization, is estimated at 11 million persons, of which 9 million live in extreme poverty. According to the National Indigenous Plural Assembly for Autonomy (ANIPA), there are 56 distinct indigenous groups, each with its own unique culture and language. Indigenous people are located principally in central and southern regions and represent a majority in the states of Oaxaca (53 percent) and Yucatan (52 percent). However, these groups remain largely outside the political and economic mainstream, a result of longstanding patterns of economic and social development. In many cases their ability to participate in decisions affecting their lands, cultural traditions, and allocation of natural resources is negligible.

The 1994 Chiapas uprising focused unprecedented attention on the demands of that state's indigenous population for increased economic and social rights. Among its basic demands, the EZLN called on the Government to enact measures to protect indigenous cultures, provide more opportunity for employment, and invest in schools, clinics, and infrastructure projects. In the 1996 San Andres Accords, the Government agreed with the EZLN on the need to expand indigenous rights. However, these accords have not yet been codified. In the continuing dispute, NGO's characterize the Government's heavy military presence in Chiapas as threatening and intimidating the indigenous population (see Section 1.g.).

The Government, through the National Indigenous Institute, the CNDH, and various NGO's, operates programs to educate indigenous groups about their political and human rights. The Government generally professes respect for their desire to retain elements of their traditional culture. In 1998 the CNDH created the Office of the Fourth Inspector General to review and investigate violations of indigenous rights. More than 130 NGO's are dedicated to the promotion and protection of indigenous rights.

Indigenous people do not live on autonomous reservations, although some indigenous communities exercise considerable local control over economic and social issues. In the state of Oaxaca, for example, 70 percent of the 570 municipalities are governed according to the indigenous regimen of "usages and customs," which may not follow democratic norms in allowing for secret ballot, universal suffrage, and political affiliation. These communities apply traditional practices to resolve a variety of disputes, including allegations of crimes, and to elect local officials. Quintana Roo's state legislature passed a similar provision in 1998. While the laws allow communities in these states to elect officials according to their traditions, these usages and customs tend to exclude women from the political process (see Section 3).

The law provides some protection for indigenous people, and the Government provides indigenous communities support through social and economic assistance programs, legal provisions and social welfare programs. However, these were not sufficient to meet the needs of all indigenous people. Although the overall population growth rate slowed to less than 3 percent annually, the birthrate among marginalized indigenous groups has not decreased. The General Education Act states that "teaching shall be promoted in the national language [i.e., Spanish] without prejudice to the protection and promotion of indigenous languages." However, many indigenous persons speak only their native languages. ANIPA statistics suggest that indigenous people suffer from a high rate of illiteracy and a low rate of school attendance. Non-Spanish speakers frequently are taken advantage of in commercial transactions involving bilingual middlemen and have great difficulty finding employment in Spanish-speaking areas.

Religious Minorities

In the highlands of Chiapas and other indigenous areas, traditional leaders sometimes acquiesced in, or actually ordered, the expulsion, beatings, or killing of Protestants belonging primarily to evangelical groups. Although religious differences were often a prominent feature of such incidents in Chiapas, other factors such as ethnic differences, land disputes, and struggles over political power were very often at the root of the problem.

On July 18, there was a violent confrontation between Catholic and evangelical Protestant groups in the community of Icaluntic, Chiapas. Two persons were injured by gunfire. Following this incident, local authorities drove 91 members of the Organization of Evangelical Peoples of the Chiapas Highlands from the community.

On December 3, 97 evangelical residents of the Chiapas community of San Juan Chamula, who were expelled from their homes in July in a religious conflict, returned to their homes. They were escorted by 250 state public security officers, 200 of whom remained in the community to ensure their safety.

Progovernment supporters have accused the Catholic Church in the three Chiapas dioceses of supporting the EZLN.

Section 6 Worker Rights

a. The Right of Association

The Constitution and the Federal Labor Law (LFT) provide workers with the right to form and join trade unions of their choice. About 25 percent of the total work force is unionized, mostly in the formal sector, where about one-half the labor force is employed.

No prior approval is needed to form unions, but they must register with the Federal Labor Secretariat (STPS) or state labor boards (JLCA) in order to function legally. Registration requirements are not onerous. However, the STPS or the JLCA occasionally withheld or delayed registration of unions hostile to government policies, influential employers, or established unions. The STPS and the JLCA also registered unions that turned out to be run by extortionists or labor racketeers falsely claiming to represent workers. To remedy this, STPS officials required evidence that unions were genuine and representative before registering them.

Human Rights Watch criticized the Government's system of labor tribunals in a report released in December, claiming that the right to freedom of association often was violated even when courts ruled in favor of organizing workers. The report states that in the case of the Democratic Union of Workers of the Ministry of the Environment, Natural Resources, and Fishing the courts allowed workers to organize formally, but government officials continued to interfere in such a way that the union could not function effectively.

Like the Federal Labor Board (JFCA), the JLCA are tripartite. Although trade union presence on the boards is usually a positive feature, it sometimes led to unfair partiality in representation disputes. For example, the board member from an established union may work to dissuade a JLCA from recognizing a rival organization. Trade union registration was the subject of followup activities pursuant to a 1995 agreement reached in ministerial consultations under the NAALC.

Unions form federations and confederations freely without government approval. Most unions belong to such bodies. They, too, must register to have legal status. The largest trade union central was the Confederation of Mexican Workers (CTM), traditionally a part of the labor sector of the ruling PRI, but affiliation is by individual unions.

The Federal Employee Union Federation (FSTSE), the Revolutionary Worker and Peasant Confederation, and most of the separate national unions, smaller confederations, and federations in the Labor Congress (CT) also were allied with the PRI. However, several unions do not ally themselves with the PRI, including the large teachers' union, which severed its PRI ties several years ago, freeing its minority factions to cooperate openly with other parties, particularly the PRD. Rivalries within

and between PRI-allied centrals are strong. There also are a few small labor federations and independent unions outside the CT not allied with the PRI. One is the small, left-of-center Authentic Labor Front (FAT). Most FAT members sympathize with the PRD, but the FAT is independent and not formally tied to the PRD. In November 1997, 160 labor organizations representing workers in the private and public sectors, led by the telephone workers and social security workers unions, formed the National Union of Workers (UNT)--a labor central in competition with the officially recognized CT. In April the Mexican Electricians Union (SME) announced that it would withdraw from the CT over its failure to give full support to the SME's opposition to the Government's plan to privatize partially the electric power sector.

PRI-affiliated union officers traditionally helped select, ran as, and campaigned for, PRI candidates in federal and state elections and supported PRI government policies at crucial moments. This gave unions considerable influence on government policies but limited their freedom of action to defend member interests in other ways, particularly when this might harm the Government or the PRI. The CT, especially the CTM, is well represented in the PRI senatorial and congressional delegations, although their numbers diminished somewhat after the 1997 elections.

The International Labor Organization (ILO) Committee of Experts (COE) has found that certain restrictions in federal employee labor law, adopted at FSTSE request, violated ILO Convention 87 on freedom of association, which the Government has ratified. These restrictions allow only one union per jurisdiction, forbid union members from quitting the union, and prohibit reelection of union officials. In 1998 the COE and the ILO Committee on Application of Standards reiterated their criticism and asked the Government to amend the law. A 1996 Supreme Court decision invalidated similar restrictions in the laws of two states, but the decision applied only in the specific instances challenged. In May the Supreme Court extended this interpretation to unions in federal government entities.

The Constitution and the LFT provide for the right to strike. The law requires 6 to 10 days' advance strike notice, followed by brief government mediation. If federal or state authorities rule a strike "nonexistent" or "illicit," employees must remain at work, return to work within 24 hours, or face dismissal. If they rule a strike legal, the company or unit must shut down completely, management officials may not enter the premises until the strike is over, and the company may not hire replacements for striking workers. Provisions for maintaining essential services are not onerous. The law also makes filing a strike notice an effective, commonly used threat that protects a failing company's assets from creditors and courts until an agreement is reached on severance pay. Although few strikes actually occur, informal stoppages are fairly common, but uncounted in statistics, and seldom last long enough to be recognized or ruled out of order. The law permits public sector strikes, but formal public sector strikes are rare. Informal ones are more frequent.

During the first 11 months of the year, the JFCA reported that 6,080 strike notices were filed and 30 legal strikes occurred in federal jurisdiction, 11 percent more notices and 9 percent fewer strikes than in the same period in 1998. Federal labor authorities did not stretch legal requirements to rule strikes nonexistent or illicit, nor did they use delays to prevent damaging strikes and force settlements. However, in 1998 strikers at the Han Young maquiladora plant in Tijuana filed an "amparo" (a type of injunction) action in a Federal District court challenging the ruling of the JLCA in Tijuana that declared the strike, which began on May 22 of that year, to be illegal. On May 3, the court recognized the striking union's right to the collective bargaining contract and declared the 1998 strike to have been legal. Acting quickly on that decision, the union put strike flags at the plant, but the JLCA declared the new strike illegal because the board had not yet been officially informed of the court's ruling nor given time to act on that ruling.

On November 11, 1998, dissidents from the National Teachers Union used violence to force their way into the Senate. The dissidents held a number of senators hostage all night. That incident, although more violent than other incidents, was part of an ongoing struggle for control of the teachers' union. The Government released five leaders of that forcible takeover from jail on bond on February 3, after 34 days' detention, and reduced the charges against them.

The Constitution and the LFT protect labor organizations from government interference in their internal affairs, including strike decisions. However, this also can protect undemocratic or corrupt union leaders. The law permits closed shop and exclusion clauses, allowing union leaders to vet and veto new hires and to force dismissal of anyone the union expels. Such clauses are common in collective bargaining agreements.

Employer organizations slowed efforts to push for labor law reform early in the year and entered into discussions with the Government, and labor unions about reforming the LFT's rules of procedure. Government, employers, and unions had negotiated reforms through tripartite national agreements and collective bargaining at the enterprise level. Reforms were effected also via cooperation in programs to increase, and compensate for, productivity. Government, national labor unions, and employer organizations met periodically throughout the year to discuss ways and means of cooperation to boost productivity, wages, and competitiveness.

Unions are free to affiliate with, and increasingly are interested in actively participating in, trade union internationals.

b. The Right to Organize and Bargain Collectively

The Constitution and the LFT provide for the right to organize and bargain collectively. Interest by a few employees, or a union strike notice, compels an employer either to recognize a union and negotiate with it or to ask the federal or state labor board to hold a union recognition election. LFT prounion provisions led some employers to seek out or create independent "white" or company unions as an alternative to mainstream national or local unions. Representation elections are traditionally open, not secret. Traditionally, management and union officials are present with the presiding labor board official when workers openly declare their votes, one by one. Such open recounts are prevailing practice but are not required by law or regulation. Secret ballots are held when all parties agree.

Wage restraints no longer exist, except for those caused by recession or an employer's difficult situation. Wages in most union contracts appeared to keep pace with or ahead of inflation, but most workers had not yet regained buying power lost over the past decade.

The country's record in internal union democracy and transparency was mixed. Some unions were democratic, but corruption and strong-arm tactics were common in others.

A disputed 1997 election for the right to the collective bargaining contract for workers at a Korean-owned maquiladora in Tijuana, Baja California continued to provoke controversy. Although the parties reached a settlement in January 1998, allegations that plant management violated health and safety regulations were considered in a public hearing by the U.S. NAO that year. The dispute over union representation at the plant continued, and in June the U.S. and Mexican federal labor authorities reached agreement on steps to resolve this dispute; as of late fall, the two sides still were discussing details of how those steps were to be taken.

In another case involving freedom of association linked to the right to organize unions, in December 1997, 9 unions and 24 human rights NGO's jointly filed a submission with the U.S. NAO alleging that a CTM-affiliated union used strong-arm tactics to intimidate workers so that they would not vote in favor of a rival union to represent workers at a plant in Mexico state. This submission also alleged violations of health and safety regulations. The Canadian NAO also received a submission on this case in the spring of 1998. The U.S. NAO issued a report in July 1998 that recommended ministerial consultations. At year's end, U.S., Mexican, and Canadian labor authorities continued to discuss the issues raised in both submissions.

On November 10, the U.S. Association of Flight Attendants filed a submission with the U.S. NAO alleging violations of worker rights to freedom of association and to bargain collectively, protection of the right to organize; minimum employment standards; and prevention of occupational injuries and illnesses at Executive Air Transport, Inc. (TAESA). The complaint focused on the voting process employed when the Mexican Flight Attendants Union sought the right to represent flight attendants employed by TAESA.

The public sector is almost totally organized. Industrial areas are heavily organized. Even states with little industry have transport and public employee unions, and rural peasant organizations are omnipresent. The law protects workers from antiunion discrimination, but enforcement is uneven in the few states with low unionization.

Unionization and wage levels in the in-bond export sector vary by area and sophistication of the manufacturing process. Wages have been lower and job creation has been greater in this sector than in more traditional manufacturing, but the gap continues to narrow. Wages in the maquiladora sector are still lower than in the traditional manufacturing sector, although they are approaching manufacturing sector level. Some observers allege poor working conditions, inadequate wages, and employer and government efforts to discourage unionization in this sector. There is no evidence that the Federal Government opposes unionization of the plants (the maquiladora sector tends to be under state jurisdiction), but some state and local governments in the west are said to help employers discourage unions, especially independent ones.

c. Prohibition of Forced or Compulsory Labor

The Constitution prohibits forced labor, which includes forced and bonded labor by children. There have been no credible reports of forced labor for many years, with the exception of abuses of refugees and illegal immigrants in Chiapas (see Section 2.d.).

d. Status of Child Labor Practices and Minimum Age for Employment

The Constitution prohibits children under 12 years of age from working. The law sets the minimum legal work age at 14 years. Those between the ages of 14 and 15 may work only limited hours, with no night or hazardous work, which generally makes hiring them uneconomical. Enforcement was reasonably good at large and medium-sized companies, especially in export industries and those under federal jurisdiction. Enforcement was inadequate at many small companies and in agriculture and construction. It was nearly absent in the informal sector, despite government efforts.

The ILO reported that 18 percent of children 12 to 14 years of age work, often for parents or relatives. Most child labor is in the informal sector (including myriad underage street vendors), family-owned workshops, or agriculture and rural areas. Mexico City's central market employs approximately 11,000 minors between the ages of 7 and 18, who work as cart-pushers, kitchen help, and vendors. The children do not receive a fixed wage, and most work long shifts, starting in the early morning hours. The CTM agricultural union's success years earlier in obtaining free transport for migrant seasonal workers from southern states to fields in the north inadvertently led to a significant increase in child labor. The union and employers were unable to convince indigenous farm workers to leave their families at home, and many have settled near work sites in the north. The union has had some limited success in negotiating with employers to finance education in Spanish and indigenous languages near work sites and in obtaining social security child care centers, but it has had difficulty in persuading member families not to bring their children into the fields. Many urban child workers are migrants from rural areas, are illiterate, and have parents who are unemployed. The law bans child labor, including forced or bonded labor (see Section 6.c.).

The Federal Government increased the number of obligatory school years from 6 to 9 in 1992 and made parents legally liable for their children's attendance, as part of a reform to upgrade labor force skills and long-term efforts to continue increasing educational opportunities for and participation by youth. Scholarships offered to families of the abject poor under the Government's "Progresas" antipoverty program kept an additional 100,000 children in school in 1999.

e. Acceptable Conditions of Work

The Constitution and the LFT provide for a daily minimum wage. The tripartite National Minimum Wage Commission (government, labor, and employers) usually sets minimum wage rates each December, effective January 1, but any of the three parties can ask that the commission reconvene during the year to consider a changed situation. In December the wage commission adopted a 10 percent increase effective January 1, 2000, based in part on the Government's projection of a 10 percent annual inflation rate for 2000. For the first time, all labor representatives on the commission abstained from the vote in protest, and also for the first time, the Government stood firm on its original offer. During the course of the year, wage and benefit adjustments to collective bargaining contracts averaged about 15 to 16 percent, which was several points above the final inflation rate of 12.32 percent for the year.

In Acapulco, Mexico City and nearby industrial areas, southeast Veracruz state's refining and petrochemical zone, and most border areas, the minimum daily wage was set at \$3.99 (37.90 pesos). However, employers actually paid \$4.55 because of a supplemental 14 percent subsidy. These income supplements to the minimum wage, agreed to in annual tripartite pacts, are for all incomes less than four times the minimum wage, decreasing as wages and benefits rise. In Guadalajara, Monterrey, and other advanced industrialized areas, the minimum daily wage (before the subsidy) was \$3.70 (35.10 pesos). In other areas, it was \$3.44 (32.70 pesos). There are higher minimums for some occupations, such as building trades.

The minimum wage does not provide a decent standard of living for a worker and family. Few workers (about 16 percent) earn only the minimum wage. Industrial workers average three to four times the minimum wage, earning more at bigger, more advanced, and prosperous enterprises.

The law and contract arrangements provide workers with extensive additional benefits. Legally required benefits include free social security medical treatment and pensions, individual worker housing and retirement accounts, substantial Christmas bonuses, paid vacations, and profit-sharing. Employer costs for these benefits add from about 27 percent of payroll at marginal enterprises to over 100 percent at major firms with good union contracts. In addition, employers frequently subsidize the cost of meals, transportation, and day care for children, and pay bonuses for punctuality and productivity.

The LFT sets six 8-hour days as the legal workweek, but with pay for 56 hours. For most industrial workers, especially under union contract, the true workweek is 42 hours, although they are paid for 7 full 8-hour days. This is one reason why unions jealously defend the legal ban on hourly wages. Workers asked to exceed 3 hours of overtime per day or required to work overtime on 3 consecutive days must be paid triple the normal wage.

The Federal Government established 11 special labor arbitration and conciliation boards (in Queretaro, Pachuca, Ciudad del Carmen, Zacatecas, Orizaba, Ciudad Juarez, Cancun, Colima, La Paz, Reynosa, and Tijuana) in 1997 and four more state offices of the STPS in 1998 to make it more convenient for workers to file complaints and bring other actions before the labor court system. In addition, the Labor Secretary transferred more personnel to the JFCA to reduce backlogs. He also highlighted as special issues child labor, women in the workplace, and the physically disabled by assigning responsibility for them directly to one of the under secretaries. In February the Labor Secretariat established a separate office for equality and gender issues.

The law requires employers to observe occupational safety and health regulations, issued jointly by the STPS and the Social Security Institute (IMSS), and to pay contributions that vary according to their workplace safety and health experience ratings. LFT-mandated joint management and labor committees set standards and are responsible for workplace enforcement in plants and offices. These committees meet at least monthly to consider workplace needs and file copies of their minutes with federal labor inspectors. In 1998 the STPS completed signing agreements with all of the state labor authorities and implemented new regulations on inspections, which provided for information exchanges and federal training of state inspectors.

STPS and IMSS officials report that compliance is reasonably good at most large companies. Federal inspectors are stretched too thin for effective enforcement if companies do not comply voluntarily and fulfill their legal obligation to train workers in occupational health and safety matters. There are special problems in construction, where unskilled, untrained, poorly educated, transient labor is common, especially at many small sites and companies. Many unions, particularly in construction, are not organized effectively to provide training, to encourage members to work safely and healthily, to participate in the joint committees, or to insist on their rights.

Individual employees or unions also may complain directly to inspectors or safety and health officials. Workers may remove themselves from hazardous situations without jeopardizing their employment. Plaintiffs may bring complaints before the federal labor board at no cost to themselves.

f. Trafficking in Persons

Available information does not suggest that trafficking of persons in or to the country is a significant problem. However, there have been isolated cases of organized trafficking of persons for the purpose of forced prostitution or sexual services, domestic servitude, forced or bonded sweatshop labor, or other debt bondage. Mexico is used as a transit country for the trafficking of persons, especially from China, to the United States and Canada. The Government has significantly strengthened its cooperation with China, the United States, and other countries to address this problem. However, there were credible reports that police, immigration, and customs officials were involved in the trafficking of such persons (see Section 2.d.). There have been no reports of foreigners being trafficked to the country for the purpose of performing forced labor within its borders.

There are no specific laws that prohibit the trafficking of persons; however, immigration laws, the federal organized crime law, and federal and state penal codes contain laws that are used to prosecute traffickers of undocumented migrants, women, and children.

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